

The Silent Architect of the Age of Institutionalization:

The International Chamber of Commerce as the Technocratic Saviour of Global Trade

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Introduction

The First World War marked a notable departure from the political and economic order that had facilitated international trade throughout the nineteenth century. The gold standard was abandoned in Britain and Germany, and a web of bilateral trade treaties that had sustained the first wave of globalization collapsed.¹ Consequently, from 1913 to 1928, Europe's share of total global trade dropped roughly 16%.² This interwar period subsequently became a transitional era bridging laissez-faire bilateralism with emerging multilateral frameworks.³

Amidst this structural crisis, two distinct institutional paradigms attempted to stabilize the faltering global economy by rewriting the rules of international trade. The first was the League of Nations, an intergovernmental organization that broadly served to achieve world peace through multilateral diplomatic experimentation.⁴ The second was the International Chamber of Commerce (ICC), a transnational business association founded in Paris in 1920 to represent the interests of global commerce on an increasingly hyper-nationalist world stage.⁵

The ensuing decades demonstrated a stark divergence in the institutional efficacy of these bodies. While the League of Nations struggled with a lack of participation from member nations, the ICC succeeded in establishing a durable, functional framework for global trade through the codification of arbitration rules, the mitigation of non-tariff barriers, and the morphological

¹ Johanna Gautier Morin, "Democracy, Authoritarianism and Global Economic Governance," *Contemporary European History*, January 9, 2024, 1–12, <https://doi.org/10.1017/s0960777323000656>.

² Madeleine Dungy, *The League of Nations and International Trade in the Interwar Period*, July 12, 2025, <https://toynbeeprize.org/posts/the-league-of-nations-and-international-trade-in-the-interwar-period-interview-with-madeleine-dungy/>.

³ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

⁴ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

⁵ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

standardization of trade terminology.⁶⁷ While contemporaneous and modern critics have condemned the ICC's corporate leaders as being unelected officials usurping the sovereign business of government and endangering regulatory capture⁸, it was precisely this insulation from political pressures that allowed the ICC to forge effective multilateral architectures. By operating outside the rigid strictures of state diplomacy, the ICC's non-governmental autonomy served as a necessary stipulation for multilateral success in a deeply fractured era.⁹

The Collapse of the Nineteenth-Century Order

The prewar economic landscape highlights why institutional innovation became critical in the 1920s. Before 1914, international trade was a highly decentralized system of overlapping bilateral treaties anchored by Most-Favoured-Nation (MFN) clauses.¹⁰ While functional through stable periods of British hegemony, this system proved inherently fragile when exposed to the systemic trauma of total industrial war.¹¹

In the immediate aftermath of the First World War, States desperate to manage astronomical war debts and control inflation imposed severe capital controls and placed strict limits on the foreign ownership of strategic economic assets.¹² The bonds of international trade and investment loosened considerably as corporations were forced to expand their local roots in

⁶ Mikaël Schinazi, *The Three Ages of International Commercial Arbitration* (Cambridge Etc: Cambridge University Press, 2022), Chapter 1.

⁷ Vladar Zsuzsa, Constantinovits Milan, and Vasa Laszlo, "International Chamber of Commerce Rules for Trade Terms - the Terminological Approach," *International Journal of Economics and Business Administration* IX, no. Issue 1 (March 1, 2021): 168–79, <https://doi.org/10.35808/ijeba/665>.

⁸ Paul M. W. Tucker, *Unelected Power : The Quest for Legitimacy in Central Banking and the Regulatory State* (Princeton, New Jersey: Princeton University Press, 2019).

⁹ Madeleine Lynch Dungy, "Writing Multilateral Trade Rules in the League of Nations," *Contemporary European History* 30, no. 1 (April 27, 2020): 60–75, <https://doi.org/10.1017/s096077732000017x>.

¹⁰ Madeline Dungy, *The League of Nations and International Trade in the Interwar Period*, July 12, 2025, <https://toynbeeprize.org/posts/the-league-of-nations-and-international-trade-in-the-interwar-period-interview-with-madeleine-dungy/>.

¹¹ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

¹² Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 7.

accordance with nationalist sentiment.¹³ Furthermore, the dissolution of the Habsburg, Russian, and Ottoman empires led to the creation of numerous successor states. These states immediately erected formidable tariff barriers and protectionist regulations to safeguard their nascent domestic industries and assert their newly won political sovereignty against former imperial leaders.¹⁴

These fragmented commercial networks, paired with the use of private commerce as a tool of military and diplomatic power, proved to European internationalists that they had to abandon the laissez-faire liberalism of the nineteenth century¹⁵. Markets would now have to be actively propped up by formalized international rules and permanent, governing institutions.¹⁶ This realization sparked a leaderless competition among rival visions of postwar global order, setting the stage for the divide between political and technical multilateralism.¹⁷ Multilateral trade policy emerged as a desperate field of experimentation to address Europe's loss of power in global markets and to formulate a cohesive response to the collapse of empires.¹⁸

The League of Nations: Political Gridlock

The League of Nations was initially positioned by the victorious Allied powers as the preeminent forum for discourse surrounding and resolution of these systemic economic failures. Through its Economic and Financial Organization, the League sought to build a comprehensive network of information sharing and trade agreements that would facilitate global commercial

¹³ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

¹⁴ Madeleine Lynch Dungy, "Writing Multilateral Trade Rules in the League of Nations," *Contemporary European History* 30, no. 1 (April 27, 2020): 60–75, <https://doi.org/10.1017/s096077732000017x>.

¹⁵ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

¹⁶ Thomas David and Pierre Eichenberger, "'a World Parliament of Business'? The International Chamber of Commerce and Its Presidents in the Twentieth Century," *Business History*, March 3, 2022, 1–24, <https://doi.org/10.1080/00076791.2021.2025219>.

¹⁷ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

¹⁸ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

integration.¹⁹ However, its ambitious efforts to create binding multilateral trade rules were hindered by its inherent existence as a voluntary assembly of sovereign political actors. Each member state was tethered to their respective geopolitical objectives and nationalist mandates, making economic compromise exceedingly difficult.²⁰

The League's approach to trade governance was inextricably motivated by its European influences, yet internationalists still approached the League's economic committees with widely varying, mutually exclusive geopolitical ambitions.²¹ Inevitable fundamental disagreements emerged immediately regarding the economic status of European empires. Prominent bureaucrats such as German economist Bernhard Harms advocated for a sweeping "open-door" regime that would ensure free, multilateral access to colonial markets and raw materials, arguing that this was necessary to prevent future imperial conflicts.²² Conversely, British officials adamantly insisted that international trade rules must not impinge upon British imperial sovereignty, fiercely defending a system that barred non-European nations from participation in a global market.²³

These entrenched political rivalries made the realization of grand, binding multilateral treaties, as the League desired, virtually impossible. At the Genoa Conference of 1922, representatives from the newly formed successor states vigorously resisted any attempt to create what they perceived as "super-laws over-riding national legislation".²⁴ Faced with this intractable political reality, the League retreated from its grand institutional visions and was reduced to

¹⁹ Rewert Hoffer, "Is the Business of Business Business Alone? The International Chamber of Commerce and the Origins of Global Business Diplomacy, 1920-1931 Rewert Hoffer" (London School of Economics, 2021).

²⁰ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

²¹ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

²² Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

²³ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

²⁴ Madeleine Lynch Dungy, "Writing Multilateral Trade Rules in the League of Nations," *Contemporary European History* 30, no. 1 (April 27, 2020): 60–75, <https://doi.org/10.1017/s096077732000017x>.

writing a series of weak, non-binding guidelines for bilateral treaties. The League's institutional design, which placed inordinate emphasis on state consensus and political councils, proved to be a fatal structural flaw.²⁵

The International Chamber of Commerce: Private Institutionalization

While the League of Nations struggled with diplomatic gridlock and nationalist intransigence, the International Chamber of Commerce adopted a highly pragmatic thesis. Founded in 1920, the ICC was not a political assembly of states, but an organization composed of national committees representing major voices in trade associations and corporations across the globe.²⁶ Its founding mission was explicitly functional: to overcome the capital controls, tariff barriers, and legal uncertainties that were stifling transnational commerce and destroying corporate prosperity.²⁷ This period would mark a profound evolutionary shift identified in the historical and legal scholarship as the move from the “Age of Aspirations” to the “Age of Institutionalization”.²⁸

In a new global economy, the ICC recognized that if international trade was to survive, it could not rely on the politically constrained apparatus of state diplomacy.²⁹ Instead, the ICC championed a technocratic paradigm based on the proactive codification of rules, the drafting of standardized legal instruments, and the creation of autonomous dispute resolution bodies that

²⁵ Costas Douzinas, *Human Rights and Empire* (Routledge, 2007), Chapter 10.

²⁶ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 7.

²⁷ Rewert Hoffer, “Is the Business of Business Business Alone? The International Chamber of Commerce and the Origins of Global Business Diplomacy, 1920-1931 Rewert Hoffer” (London School of Economics, 2021).

²⁸ Mikaël Schinazi, *The Three Ages of International Commercial Arbitration* (Cambridge Etc: Cambridge University Press, 2022), Chapter 1.

²⁹ Mikaël Schinazi, *The Three Ages of International Commercial Arbitration* (Cambridge Etc: Cambridge University Press, 2022), Chapter 1.

could operate independently of national courts.³⁰ This approach allowed the ICC to effectively bypass the toxic ideological disputes over imperialism, border security, and state sovereignty that paralyzed the League.

1) The Codification of International Commercial Arbitration

The efficacy of the ICC's technocratic focus is best illustrated by its foundational role in establishing the modern international commercial arbitration regime. Before 1920, cross-border disputes were fraught with systemic peril.³¹ Domestic courts were inherently biased against foreign nationals, and obtaining enforceable judgments across borders was procedurally tortuous and legally uncertain.³² Recognizing this bottleneck, the ICC took decisive, unilateral action to privatize and internationalize commercial justice. A specialized committee was established in 1920 under the chairmanship of Charles Lyon-Caen to draft a revolutionary new institutional and normative framework.³³ The exhaustive work of the Lyon-Caen committee culminated in a historic resolution at the 1921 London Congress of the ICC, which called for the immediate legalization of arbitration clauses in commercial contracts, the liberalization of nationality criteria for arbitrators, and the adoption of uniform domestic rules on the enforcement of arbitral awards.³⁴

³⁰ Mikaël Schinazi, *The Three Ages of International Commercial Arbitration* (Cambridge Etc: Cambridge University Press, 2022), Chapter 5.

³¹ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 7.

³² Saud Aldawsar, *Cambridge Compendium of International Commercial and Investment Arbitration*, ed. Stefan Kröll, Andrea Bjorklund, and Franco Ferrari, Cambridge University Press EBooks (Cambridge University Press, 2023), <https://doi.org/10.1017/9781108304467>.

³³ Bruno Sousa Rodrigues, "The Transnational Codification of International Arbitration Uniformisation under the Shadow of War and Commerce," 2025, Chapter 4.

³⁴ Bruno Sousa Rodrigues, "The Transnational Codification of International Arbitration Uniformisation under the Shadow of War and Commerce," 2025, Chapter 4.

By utilizing private, standardized arbitration, businesses could bypass the unpredictable, nationalist jurisdiction of national courts. The ICC Court administered cases based on codified, universally applied rules that the ICC itself had authored.³⁵ To aid in enforcement through state apparatuses, the ICC engaged in highly targeted lobbying rather than attempting to force a treaty through the League of Nations.³⁶

2) Terminological Standardization and the 1936 Incoterms

The ICC further triumphed by standardizing trade terminology, culminating in the publication of the International Commercial Terms (Incoterms) in 1936.³⁷

International sales contracts are defined by specific structural elements, the most crucial being the parity. The parity is the exact geographical and temporal point where the costs and risks of goods are handed over from the seller to the buyer.³⁸ Before the ICC's intervention, related terms (such as FOB, CIF, FAS) were interpreted radically differently across various legal systems and regional trade associations.³⁹ This lack of terminological standardization led to endless contract disputes, stranded goods, and financial losses.⁴⁰ The ICC recognized this

³⁵ Mikaël Schinazi, *The Three Ages of International Commercial Arbitration* (Cambridge Etc: Cambridge University Press, 2022), Chapter 1.

³⁶ Saud Aldawsar, *Cambridge Compendium of International Commercial and Investment Arbitration*, ed. Stefan Kröll, Andrea Bjorklund, and Franco Ferrari, Cambridge University Press EBooks (Cambridge University Press, 2023), <https://doi.org/10.1017/9781108304467>.

³⁷ Vldar Zsuzsa, Constantinovits Milan, and Vasa Laszlo, "International Chamber of Commerce Rules for Trade Terms - the Terminological Approach," *International Journal of Economics and Business Administration* IX, no. Issue 1 (March 1, 2021): 168–79, <https://doi.org/10.35808/ijeba/665>.

³⁸ Vldar Zsuzsa, Constantinovits Milan, and Vasa Laszlo, "International Chamber of Commerce Rules for Trade Terms - the Terminological Approach," *International Journal of Economics and Business Administration* IX, no. Issue 1 (March 1, 2021): 168–79, <https://doi.org/10.35808/ijeba/665>.

³⁹ Vldar Zsuzsa, Constantinovits Milan, and Vasa Laszlo, "International Chamber of Commerce Rules for Trade Terms - the Terminological Approach," *International Journal of Economics and Business Administration* IX, no. Issue 1 (March 1, 2021): 168–79, <https://doi.org/10.35808/ijeba/665>.

⁴⁰ Vldar Zsuzsa, Constantinovits Milan, and Vasa Laszlo, "International Chamber of Commerce Rules for Trade Terms - the Terminological Approach," *International Journal of Economics and Business Administration* IX, no. Issue 1 (March 1, 2021): 168–79, <https://doi.org/10.35808/ijeba/665>.

problem as a pure exercise in terminological standardization and morphological analysis.⁴¹

Through extensive consultation with merchants and legal experts, the ICC identified and evaluated the morphological structure of trade terms, establishing standardized definitions that transcended national legal variations.⁴² They divided terms logically into conceptual groups, such as sea and inland waterway transport versus any mode of transport, creating a unified lexicon for global commerce.⁴³

The economic implications of this technical standardization were profound. In macroeconomic terms, non-standardized trade rules and conflicting legal terminologies act as severe technical Non-Tariff Measures (NTMs). These NTMS create market imperfections and asymmetric information between cross-border buyers and sellers, artificially decreasing supply and demand.⁴⁴ Standardizing terminology directly reduces the price wedge created by divergent national interpretations, allowing for a homogenous, predictable understanding of cost structures across borders.⁴⁵

The formulation of Incoterms bypassed political sovereignty entirely. The rules were voluntary terms incorporated into private contracts by merchants seeking to lower transaction

⁴¹ Vldar Zsuzsa, Constantinovits Milan, and Vasa Laszlo, “International Chamber of Commerce Rules for Trade Terms - the Terminological Approach,” *International Journal of Economics and Business Administration* IX, no. Issue 1 (March 1, 2021): 168–79, <https://doi.org/10.35808/ijeba/665>.

⁴² Vldar Zsuzsa, Constantinovits Milan, and Vasa Laszlo, “International Chamber of Commerce Rules for Trade Terms - the Terminological Approach,” *International Journal of Economics and Business Administration* IX, no. Issue 1 (March 1, 2021): 168–79, <https://doi.org/10.35808/ijeba/665>.

⁴³ Vldar Zsuzsa, Constantinovits Milan, and Vasa Laszlo, “International Chamber of Commerce Rules for Trade Terms - the Terminological Approach,” *International Journal of Economics and Business Administration* IX, no. Issue 1 (March 1, 2021): 168–79, <https://doi.org/10.35808/ijeba/665>.

⁴⁴ John C. Beghin and Heidi Schweizer, “Agricultural Trade Costs,” *Applied Economic Perspectives and Policy* 43, no. 2 (November 26, 2020), <https://doi.org/10.1002/aepp.13124>.

⁴⁵ John C. Beghin and Heidi Schweizer, “Agricultural Trade Costs,” *Applied Economic Perspectives and Policy* 43, no. 2 (November 26, 2020), <https://doi.org/10.1002/aepp.13124>.

costs. Yet, because of their immense pragmatic utility, they achieved near universal global adoption.⁴⁶

The Perils of Unelected Power

Despite its undeniable functional successes in restarting global trade, the ICC's rapid ascent as a primary architect of international rules generated substantial criticism from legal scholars, political theorists, and state officials.⁴⁷ The crux of this counter-argument centers on the legitimacy of "unelected power" and the severe democratic deficit inherent in allowing private, profit-driven business associations to dictate the terms of global governance.⁴⁸

A foundational principle of modern democratic politics is that the business of government should be divided among accountable politicians and transparent, independent courts.⁴⁹ The sharp distinction between the respective roles of the state and the private corporation is the result of conscious historical choices regarding the state's monopoly on the exercise of public power, and the inherent danger of ceding that power to entities motivated solely by capital accumulation.⁵⁰ When the ICC drafted arbitration rules that bypassed domestic courts, it blurred this vital distinction. Critics argue that such actions allowed the ICC to act as an unaccountable shadow regulatory state. In modern democratic contexts, legislation derives its legitimacy from the elective and accountable nature of legislatures.⁵¹ By pushing international law toward a

⁴⁶ Vlado Zsuzsa, Constantinovits Milan, and Vasa Laszlo, "International Chamber of Commerce Rules for Trade Terms - the Terminological Approach," *International Journal of Economics and Business Administration* IX, no. Issue 1 (March 1, 2021): 168–79, <https://doi.org/10.35808/ijeba/665>.

⁴⁷ Jeremy Waldron, "REPRESENTATIVE LAWMAKING," 2009.

⁴⁸ Paul M. W. Tucker, *Unelected Power : The Quest for Legitimacy in Central Banking and the Regulatory State* (Princeton, New Jersey: Princeton University Press, 2019).

⁴⁹ Paul M. W. Tucker, *Unelected Power : The Quest for Legitimacy in Central Banking and the Regulatory State* (Princeton, New Jersey: Princeton University Press, 2019).

⁵⁰ Costas Douzinas, *Human Rights and Empire* (Routledge, 2007), Chapter 10.

⁵¹ Jeremy Waldron, "REPRESENTATIVE LAWMAKING," 2009.

framework that heavily favoured capital mobility and shielded corporate assets from state seizure, the ICC was enacting a highly specific, pro-corporate ideological agenda.

While this critique regarding the democratic deficit and potential for regulatory capture within the ICC is theoretically sound, it fails to account for the catastrophic realities of the interwar political environment. In the context of the 1920s and 1930s, the insulation of the ICC from democratic and nationalistic forces was the vital feature that prevented the total collapse of international trade.⁵²

Conclusion

The interwar period witnessed a profound, existential struggle to establish a functional architecture for global commerce in the wake of imperial collapse. Within this era, the League of Nations and the International Chamber of Commerce represented two fundamentally divergent methodologies of global governance.⁵³

The League of Nations was bound by and ultimately failed due to the political idealism of grand multilateral treaties and the strictures of sovereign diplomacy.⁵⁴ In stark contrast, the International Chamber of Commerce bypassed these political minefields by embracing a paradigm of technocratic pragmatism. Through the creation of the Court of Arbitration and the codification of Incoterms, the ICC successfully built the foundations of the modern global economy.⁵⁵ While critics correctly point out the democratic deficit inherent in allowing unelected

⁵² Costas Douzinas, *Human Rights and Empire* (Routledge, 2007), Chapter 10.

⁵³ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

⁵⁴ Madeleine Lynch Dungy, "Writing Multilateral Trade Rules in the League of Nations," *Contemporary European History* 30, no. 1 (April 27, 2020): 60–75, <https://doi.org/10.1017/s096077732000017x>.

⁵⁵ Madeleine Lynch Dungy, *Order and Rivalry* (Cambridge University Press, 2023), Chapter 1.

corporate officials to shape international law⁵⁶, this structural autonomy was the exact mechanism that enabled the ICC's success.

The enduring legacy of the ICC's interwar strategy lives on as the terminological standardization of Incoterms remains the bedrock of global supply chains today.⁵⁷ Ultimately, in times of geopolitical fracture and nationalist resurgence, the pragmatic standardization of technical reality is a far more effective vehicle for global integration than the pursuit of political idealism.

⁵⁶ Jeremy Waldron, "REPRESENTATIVE LAWMAKING," 2009.

⁵⁷ Vladar Zsuzsa, Constantinovits Milan, and Vasa Laszlo, "International Chamber of Commerce Rules for Trade Terms - the Terminological Approach," *International Journal of Economics and Business Administration* IX, no. Issue 1 (March 1, 2021): 168–79, <https://doi.org/10.35808/ijeba/665>.

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